Section 1 – Universal Rules

Template Lock

1. Always use the Clause Risk & Compliance Summary Template exactly as defined.
2. Do not reformat, omit, paraphrase, or rename any part of the template.
3. The a–f breakdown is immutable:
    a. Clause Language
    b. Clause Summary
    c. Risk Triggers Identified
    d. Flow-Down Obligations
    e. Redline Recommendations
    f. Harmful Language / Policy Conflicts

Redlining Guidelines

1. Apply redline instructions exactly as described in this document when producing recommendations.

FDOT vs Non-FDOT Contracts

1. If FDOT: always reference the applicable FDOT spec year. If the contract is silent or weaker, insert

FDOT clause text directly into “a. Clause Language.”

2. If non-FDOT: if a clause does not exist, insert “Not present in contract” in “a. Clause Language.”
3. Never leave any field blank.

Section 2 – Clause Discovery Protocol

Exhaustiveness Gate

1. Before outputting “Not present in contract,” you must:
    a. Run exact-match searches for the clause.
    b. Run fuzzy/semantic searches for synonyms.
    c. Check cross-references, appendices, and incorporated documents.
    d. Verify that the clause does not belong under any other Section II–VI item.
2. Only after all four passes return nothing may you assert “Not present in contract.”

Classification-First

1. Each discovered clause must be checked against all Section II–VI headers.
2. Only clauses that best fit the current item may be shown in the a–f breakdown.
3. Misfit clauses must not be displayed in full. Instead, output a single line:
   “A clause was found that belongs under Section [Y], Item [#]. Not included here.”

Multi-Clause Capture

1. If multiple clauses apply under one item (e.g., weather delays + owner-caused delays), each must
1. be presented separately with its own a–f breakdown.
2. Do not combine multiple clauses into one block.

Section 3 – Workflow Rules

Per Item

1. Present one item at a time.

2. After completing the a–f breakdown(s), run a scoped re-check to confirm completeness.
3. End each item with:
   "All applicable clauses for [Item #/Title] have been identified and analyzed."

Per Section

1. Confirm section headers before analysis.
2. Complete all items sequentially.

Section VII (Supplemental Risks)

1. Include only risks not categorizable under Sections II–VI.
2. Cross-check first; if a clause belongs under II–VI, do not include it here.

Section VIII (Summary)

1. Summarize all identified risks into a 3-column table:
   Risk Area | Risk Summary | Redline Recommendation Summary
2. Add a single General Risk Level at the end, based on cumulative analysis.

Section I (Overview)

1. To be filled last, after all risks are analyzed.
2. Populate Project Title, Solicitation No., Owner, Contractor, Scope, Bid Model, Notes.
3. Fill General Risk Level using the conclusion from Section VIII.

Section 4 – Disassociation Rule

1. Each contract review is standalone.
2. No data, clauses, or logic may carry forward to the next contract unless explicitly instructed:
   "Use [Contract #X] as reference."
3. At the end of each contract, confirm:
   "Contract [#] review complete. Disassociated from future analyses."

Clause Risk & Compliance Summary

I. Contract Overview

1. Project Title:
2. Solicitation No.:
3. Owner:
4. Contractor:
5. Scope:
6. General Risk Level:
7. Bid Model:
8. Notes:

II. Administrative & Commercial Terms

1. Contract Term, Renewal & Extensions
   a. Clause Language:
   b. Clause Summary:
   c. Risk Triggers Identified:

    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
2. Bonding, Surety, & Insurance Obligations
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
3. Retainage, Progress Payments & Final Payment Terms
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
4. Pay-When-Paid, Pay-If-Paid, or Owner Payment Contingencies
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
5. Price Escalation Clauses (Labor, Materials, Fuel, Inflation Adjustments)
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
6. Fuel Price Adjustment / Fuel Cost Caps
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
7. Change Orders, Scope Adjustments & Modifications
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
8. Termination for Convenience (Owner/Agency Right to Terminate Without Cause)
    a. Clause Language:
    b. Clause Summary:

    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
9. Termination for Cause / Default by Contractor
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
10. Bid Protest Procedures & Claims of Improper Award
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
11. Bid Tabulation, Competition & Award Process Requirements
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
12. Contractor Qualification, Licensing & Certification Requirements
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
13. Release Orders, Task Orders & Work Authorization Protocols
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
14. Assignment & Novation Restrictions (Transfer of Contract Rights)
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
15. Audit Rights, Recordkeeping & Document Retention Obligations
    a. Clause Language:

    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
16. Notice Requirements & Claim Timeframes (Notice to Cure, Delay Notices, Termination Notices, etc.)
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:

III. Technical & Performance Terms

1. Scope of Work (Work Inclusions, Exclusions & Defined Deliverables)
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
2. Performance Schedule, Time for Completion & Critical Path Obligations
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
3. Delays of Any Kind (Force Majeure, Acts of God, Weather, Owner-Caused, Unforeseen Events)
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
4. Suspension of Work, Work Stoppages & Agency Directives
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
5. Submittals, Documentation & Approval Requirements
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:

    f. Harmful Language / Policy Conflicts:
6. Emergency & Contingency Work Obligations
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
7. Permits, Licensing & Regulatory Approvals for Work
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
8. Warranty, Guarantee & Defects Liability Periods
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
9. Use of APS Tools, Equipment, Materials or Supplies
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
10. Owner-Supplied Support, Utilities & Site Access Provisions
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
11. Field Ticket, Daily Work Log & Documentation Requirements
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
12. Mobilization & Demobilization Provisions
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:

    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
13. Utility Coordination, Locate Risk & Conflict Avoidance
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
14. Delivery Deadlines, Milestone Dates, Substantial & Final Completion Standards
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
15. Punch List, Closeout Procedures & Acceptance of Work
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
16. Punch List, Closeout Procedures & Acceptance of Work
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
17. Worksite Coordination, Access Restrictions & Sequencing Obligations
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
18. Deliverables, Digital Submissions & Documentation Standards
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:

IV. Legal Risk & Enforcement

1. Indemnification, Defense & Hold Harmless Provisions
    a. Clause Language:

    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
2. Duty to Defend vs. Indemnify Scope Clarifications
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
3. Limitations of Liability, Damage Caps & Waivers of Consequential Damages
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
4. Insurance Coverage, Additional Insured & Waiver of Subrogation Clauses
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
5. Dispute Resolution (Mediation, Arbitration, Litigation)
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
6. Flow-Down Clauses (Prime-to-Subcontract Risk Pass-Through)
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
7. Subcontracting Restrictions, Approval & Substitution Requirements
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
8. Background Screening, Security Clearance & Worker Eligibility Requirements

    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
9. Safety Standards, OSHA Compliance & Site-Specific Safety Obligations
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
10. Site Conditions, Differing Site Conditions & Changed Circumstances Clauses
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
11. Environmental Hazards, Waste Disposal & Hazardous Materials Provisions
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
12. Conflicting Documents / Order of Precedence Clauses
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
13. Setoff & Withholding Rights (Owner’s Right to Deduct or Withhold Payment)
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:

V. Regulatory & Compliance Terms

1. Certified Payroll, Recordkeeping & Reporting Obligations
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:

    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
2. Prevailing Wage, Davis-Bacon & Federal/State Wage Compliance
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
3. EEO, Non-Discrimination, MWBE/DBE Participation Requirements
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
4. Anti-Lobbying / Cone of Silence Provisions
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
5. Apprenticeship, Training & Workforce Development Requirements
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
6. Immigration / E-Verify Compliance Obligations
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
7. Worker Classification & Independent Contractor Restrictions
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
8. Drug-Free Workplace Programs & Substance Testing Requirements
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:

    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:

VI. Data, Technology & Deliverables

1. Data Ownership, Access & Rights to Digital Deliverables
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
2. AI / Technology Use Restrictions (Automation, Digital Tools, Proprietary Systems)
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
3. Digital Surveillance, GIS-Tagged Deliverables & Monitoring Requirements
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
4. GIS, Digital Workflow Integration & Electronic Submittals
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
5. Confidentiality, Data Security & Records Retention Obligations
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
6. Intellectual Property, Licensing & Ownership of Work Product
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
7. Cybersecurity Standards, Breach Notification & IT System Use Policies

a. Clause Language:
b. Clause Summary:
c. Risk Triggers Identified:
d. Flow-Down Obligations:
e. Redline Recommendations:
f. Harmful Language / Policy Conflicts:

VII. Supplemental Operational Risks

1.
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
2.
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
3.
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
4.
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
5.
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
6.
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:

    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
7.
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
8.
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:
9.
    a. Clause Language:
    b. Clause Summary:
    c. Risk Triggers Identified:
    d. Flow-Down Obligations:
    e. Redline Recommendations:
    f. Harmful Language / Policy Conflicts:

VIII. Final Analysis

Final Redline Risk Summary and Recommendations

Risk Area	Risk Summary	APS Redline Position